

HOUSE No. 2279

The Commonwealth of Massachusetts

PRESENTED BY:

Kenneth I. Gordon

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to travel mileage rate fees for sheriffs, deputy sheriffs and constables.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Kenneth I. Gordon</i>	<i>21st Middlesex</i>	<i>1/14/2025</i>

HOUSE No. 2279

By Representative Gordon of Bedford, a petition (accompanied by bill, House, No. 2279) of Kenneth I. Gordon relative to travel mileage rate fees for sheriffs, deputy sheriffs and constables. Municipalities and Regional Government.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to travel mileage rate fees for sheriffs, deputy sheriffs and constables.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 8 of chapter 262 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by striking out subsection (6) and inserting in place thereof
3 the following:-

4 for an attachment on mesne process of land or of any leasehold estate, \$20 for each
5 defendant against whom an attachment is made, 65.5 cents a mile each way for travel from the
6 place of service to the registry, and his fee for the copy deposited in the registry of deeds or land
7 court, together with the recording fees actually paid;

8 SECTION 2. Section 8 of chapter 262 of the General Laws, is hereby amended by
9 striking out subsection (vi) of subsection (9) and inserting in place thereof the following:-

10 for travel, 65.5 cents a mile each way from the place where he receives the execution to
11 the office of the register of deeds, and his fee for the copy;

SECTION 3. Section 8 of chapter 262 of the General Laws, is hereby amended by striking out subsection (19) and inserting in place thereof the following:-

for travel in the service of original writs, executions, warrants, summonses, subpoenas, notices and other processes, 65.5 cents a mile each way, to be computed from the place of service to the court or place of return; and if the same precept, or process is served upon more than 1 person, the travel shall be computed from the most remote place of service, with such further travel as was necessary in serving it; if the distance from the place of service to the place of return exceeds 20 but does not exceed 50 miles, 65.5 cents a mile 1 way only shall be allowed for all travel exceeding 20 miles and, if it exceeds 50 miles, only 15 cents a mile 1 way shall be allowed for all travel exceeding that distance;

SECTION 4. Section 8 of chapter 262 of the General Laws, is hereby amended by striking out subsection (20) and inserting in place thereof the following:-

for travel in the service of venires and notices to jurors, 65.5 cents a mile for the distance actually traveled;

SECTION 5. Section 8 of chapter 262 of the General Laws, is hereby amended by striking out subsection (21) and inserting in place thereof the following:-

for posting warrants, for notifying town meetings or for other purposes, \$5 for each copy posted together with 65.5 cents a mile for the distance actually traveled;

SECTION 6. Section 8 of chapter 262 of the General Laws, is hereby amended by striking out subsection (3) of subsection (21) and inserting in place thereof the following:-

32 for service of a witness, summons, or subpoena in criminal cases, \$20 plus travel in the
33 amount of 65.5 cents a mile each way for a distance of not more than 20 miles, and for any
34 excess over 20 miles, 15 cents a mile each way, and no more. The distance shall be computed
35 from the most remote place of service to the place of return, but upon a subpoena, the court shall
36 reduce the fee for travel to a reasonable amount for the service performed if the travel charged
37 has not been actually performed by the officer who made the service; and